



POLICE DEPARTMENT

July 15, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202308471 (Incident Date: January 25, 2023) regarding Police Officer Kayla Carmona, Tax No. 970442 (DADS No. 2024-30739)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202308471, pertaining to Police Officer Kayla Carmona. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Officer Carmona would be detrimental to the Police Department's disciplinary process.

This case stemmed from Officer Carmona responding to a 911 call of an in-progress bank robbery. After arriving at the bank, Officer Carmona determined that there was no robbery and the call was actually for a dispute between the complainant and bank staff. The officers on scene determined that the complainant needed to be removed to the hospital for psychiatric evaluation and took her into custody. The CCRB substantiated five allegations of misconduct against Officer Carmona as a result of this interaction.

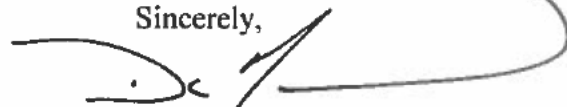
After considering the facts and circumstances, the Police Commissioner has determined that Officer Carmona's search of the complainant's bag at the bank was improper and, having conducted a search of the complainant, she should have offered the complainant a business card. However, the Police Commissioner finds Officer Carmona's act of taking the complainant's phone out of the complainant's bag did not constitute an improper search. The complainant asked Officer Carmona to get the phone for her once already and it was reasonable for Officer Carmona to believe she had implied consent to do it again a few minutes later. Officer Carmona's sole intention was for the complainant to be able to speak with her relatives to reassure them that she was safe and that she was being taken to the hospital for a psychiatric evaluation. Furthermore, the Police Commissioner finds that Officer Carmona's statement, that the complainant was "acting pretty crazy," did not arise to the

level of discourteous or offensive language. Her statement was meant to offer an explanation as to why she was not going to uncuff the complainant. Officer Carmona did not use the word "crazy" to demean or disparage the complainant and only meant to let the complainant know that her actions earlier were erratic, incoherent, and out of the norm. The complainant herself did not allege that Officer Carmona spoke to her discourteously or offensive. Indeed, she told the CCRB that Officer Carmona was kind to her.

Officer Carmona has no formal disciplinary history and no prior substantiated CCRB case. Her commanding officer rated her as performing above standards and her supervisors evaluated her as exceeding expectations in her most recent evaluation. Given her work performance and the totality of the circumstances, the mitigated penalties are appropriate to address Officer Carmona's misconduct.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to issue Officer Carmona a Schedule "A" Command Discipline with Training for the first improper search and failing to provide her business card. However, the Police Commissioner intends to impose no disciplinary action against Officer Carmona for the allegations pertaining to the second search, the alleged offensive language, and discourtesy.

Sincerely,

A handwritten signature in dark ink, appearing to read "Anthony S. Marino", with a long horizontal flourish extending to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
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ARVA RICE
INTERIM CHAIR

July 22, 2024

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Police Officer Kayla Carmona
Disciplinary Case No.: 2024-30739

Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated July 15, 2024¹, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) that you “determined that to pursue Charges and Specifications against Officer Carmona would be detrimental to the Police Department’s Disciplinary process” and you intend to retain jurisdiction over this matter and impose “a Schedule A Command Discipline with Training for the first improper search and failing to provide her business card” but “no disciplinary action against Officer Carmona for the allegations pertaining to the second search, the alleged offensive language, and discourtesy.” Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

CCRB requests that you allow these Charges and Specifications to be served on Police Officer Carmona and permit CCRB to prosecute this case. By not taking disciplinary action for the specifications involving the second search, the offensive language and discourtesy, Police Officer Carmona is not truly being held accountable for this substantiated misconduct. If CCRB’s Charges and Specifications were served on Police Officer Carmona, and she was willing to accept substantiation of all of the allegations contained in those Charges and Specifications, CCRB would be willing to offer a Command Discipline Schedule B with a total penalty of the forfeiture of ten (10) vacation days, taking into consideration the facts and evidence in this matter and balancing that with Police Officer Carmona’s lack of a disciplinary history with the Department. Imposing just a Command Discipline Schedule A and training for the first search and for failing to provide a business card downplays the seriousness of the misconduct in this case.

¹ The CCRB received Deputy Chief Marino’s letter via email at 3:55 pm on July 15, 2024. The Statute of Limitations in this matter expires on Thursday, July 25, 2024. Under the 2012 Memorandum of Understanding between our agencies, CCRB is entitled to have five (5) business days to respond to your email. Sending the letter notification on July 15th and having a response due just three (3) days before the Statute of Limitations is set to expire, circumvents CCRB’s ability to prosecute members of service for misconduct.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, CCRB disagrees with your intention of retaining jurisdiction in this matter and imposing a Command Discipline Schedule A with Training for the first improper search and for failing to provide a business card and no disciplinary action for the allegations pertaining to the second search, the alleged offensive language, and discourtesy. CCRB requests that you allow our agency to pursue the prosecution of these Charges and Specifications against Police Officer Carmona.

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'J Darche', is written over a horizontal line.

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

July 22, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202308471 (Incident Date: January 25, 2023) regarding Police Officer Kayla Carmona, Tax No. 970442 (DADS No. 2024-30739)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated July 22, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Kayla Carmona, and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Carmona for the reasons expressed in my July 15, 2024 letter.

Therefore, the Police Commissioner affirms his decision to exercise Provision Two of the Memorandum of Understanding and now directs that Police Officer Carmona be issued a Schedule "A" Command Discipline with Training for the first improper search and failing to provide her business card. In addition, the Police Commissioner directs that no disciplinary action be imposed against Officer Carmona for the allegations pertaining to the second search, the alleged offensive language, and discourtesy.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office